

Equivalent Citations

citation codes .

**INDIAN INSTITUTE OF AERO SPACE TECHNOLOGY AND MGMT
v. MR.S.UDAYAPAL REDDY**

State Consumer Disputes Redressal Commission (Aug 19, 2008)

CASE NO.

FA/67/06

DISPOSITION

ALLOWED

JUDGES

ATTORNEY

- MR.T.SRINIVASA RAO

First Appeal No. FA/67/06 (Arisen out of Order Dated null in Case No. of District Visakhapatnam-II)

1. INDIAN INSTITUTE OF AERO **SPACE TECHNOLOGY** AND MGMT
BLDG NO.8-304 OLD AIRPORT GOUTHAM NAGAR SEC-BAD-11

BEFORE:

PRESENT:

ORDER

**P. STATE CONSUMER DISPUTES REDRESSAL COMMISSION : AT
HYDERABAD**

A.

**FA No. 67/2006 against CD No. 756/2004 on the file of the District Consumer
Forum III, Hyderabad**Between:

The Director, Indian Institute of Aero **Space Technology** And Management, rep. by
G. Satyanarayana, Bldg. No.8-304, Old Airport, Goutham Nagar, Secunderabad -
11 .. Appellant/opposite party And

S. Udayapal Reddy, S/ o S. Narsimha Reddy Age 22 years, Student, R/ o
H.No.3-5-93, Shivanagar Colony, Hyderguda, Rajendranagar, Ranga Reddy District
...Respondent/complainant. Counsel for the Appellant : M/s. C. M. R. Velu Counsel
for the Respondent : Mr. T. Srinivasa Rao

CORAM : SMT. M. SHREESHA ... LADY MEMBER

AND

SRI G. BHUPATHI REDDY ... MALE MEMBER

Wednesday , the Twenty Seventh Day of August, Two Thousand Eight

Oral order : (as per Sri G. Bhupathi Reddy, Hon'ble Member)* * *

This is an appeal filed U/s.15 of the Consumer Protection Act, 1986, to set aside the order passed by the District Forum III, Hyderabad in CD No 756/2004 dated 04.10.2005. The case of the complainant in brief is that the complainant is the student of opposite party college for four year B.Tech Aeronautical Engineering Course and paid Rs.47,000/- towards fees under receipt No.37 dated 18.8.2003. Though classes started from 25.8.2003, in the month of October, the Airport authorities seized the premises of OP college, therefore, the OP could not run the college and the same was not informed to the complainant. The opposite party refused to refund the fee amount of Rs.47,000/- through reply on 17.5.2004 to the legal notice dt.26.4.2004 of the complainant issued for non- payment. Hence the complaint.

The opposite party in its counter denied that the college premises has been seized by the Air Port Authority whereas the college was shifted to another spacious premises. The OP further submitted that the colleagues of the complainant have been attending the classes at the new premises and there was no stoppage of running the classes. The complainant was irregular in attending the classes and the same was brought to the notice of the parents of the complainant also. As the complainant stood absent from attending the classes on his own, the opposite party is not liable to pay any compensation including the fees paid by him, as the Opposite party suffered a seat for the academic course of three years which was allotted to the complainant and hence they

claimed against the complainant for an amount of Rs.1,20,000/-. Hence they prayed for dismissal of the complaint.

The complainant filed Ex. A1 to A5 in support of his case and no documents are filed on behalf of the opposite party. Based on the evidence adduced on record, the District Forum directed the opposite party to pay Rs.47,000/- to the complainant. Aggrieved by the said order, the present appeal has been filed by the opposite party. The point that arises for determination in this appeal is, whether the order passed by the District Forum is sustainable.

The grounds of appeal submitted in this appeal are : The appellant submits that the District Forum has not properly appreciated the evidence on record. The finding given by the District Forum that the college stopped functioning for two months is without any basis and the said finding is not sustainable. The District Forum failed to note that the classes continued without any break and that the complainant himself was irregular to attend the classes. The appellant submits that the documents filed by the appellant is not marked by the District Forum. The order of the District Forum may be set aside.

There is no dispute that the respondent/complainant joined in appellant's college and paid Rs.47,000/- towards fee under Ex. A1 receipt issued on 18.8.2003. The prospectus of the appellant college discloses that in the month of August, 2003, the duration of B.Tech course commenced for 4 years. The appellant college has started classes from 25.08.2003. The District

Forum has given finding that the appellant college was stopped functioning for two months without any valid and reasonable reasons and directed the appellant to refund fee amount of Rs.47,000/-. The appellant submits that it is not true that the functioning of the college was stopped for two months but the college was shifted to other place. The appellant submit that the District Forum has not marked the documents and the said finding given by the District Forum is not sustainable. The submission made by the appellant is concerned, we have gone through the documents filed before the District Forum, i.e. fee receipt and a letter dated 8th October, 2003 addressed to the appellant by the Aeronautical Society of India. The said letter discloses that 29 student members along with their rules & regulation booklets, registration cards and exam forms for registration and syllabus etc mentioned and these students eligible to appear from June 2004 session examination. Apart from this, examined the certificate which was issued by Education officer and also the copy of the Students Attendance Register for the months from August, 2003 to February, 2004, which, goes to show that the classes were run and the District Forum has not marked the said documents and given finding. The appellant submits that the District Forum failed to note that the classes continued without any break and that the complainant himself was irregular to attend the classes and the complainant himself has stopped coming to the college. To substantiate his claim, the appellant filed documents but the District Forum did not mark the said documents and not discussed about the said documentary evidence while passing the order. The order of the District Forum discloses that the order was passed on the basis of the documentary evidence Ex. A1 to A4 only and given finding that the appellant college was stopped functioning for 2 months without assigning any valid and satisfactory reason. The complainant with an apprehension and fearing loss of an academic year, he has he has joined in another college and pursued his studies from the new college . The appellant filed documents before the District Forum, but, the District Forum without marking the documents given finding holding that there is deficiency in service on the part of the appellant and passed an order directing the appellant/opposite party to refund the fee. The order passed by the District Forum is not sustainable. The order is set aside. The complaint remanded back to the District Forum with a direction to conduct de novo enquiry by giving an

opportunity to both parties and marking documentars filed before the District Forum by the appellant. With the above observations, the appeal is disposed of. Lady Male Member Member

Dated : 27.08.2008.